USAID'S GUIDANCE ON CHILD SAFEGUARDING FOR IMPLEMENTING PARTNERS

USAID's child safeguarding policy and award requirements are designed to support efforts to implement critical strategies including, but not limited to, the *Journey to Self-Reliance,* the United States Government's Strategy *Advancing Protection and Care for Children in Adversity (APCCA)*, USAID's Counter Trafficking in Persons Policy, and the Protection from Sexual Exploitation and Abuse (PSEA) Policy.[1] The specific child safeguarding award requirements are spelled out in detail in the USAID Acquisition Regulation (AIDAR) and Automated Directives System (ADS) Chapter 303 Mandatory Standard Provisions.

This guidance for implementing partners envisions a collaborative effort to ensure that no child is subject to child abuse, exploitation, or neglect in any USAID-funded program by increasing partner's awareness of practical steps to prevent, stop, and respond to child abuse, exploitation, and neglect.

More than 1 billion children globally—half of all children—are exposed to violence every year.[2] Thus, bilateral donors like USAID and their implementing partners are highly likely to encounter child abuse, exploitation, and neglect at some point in their programming. To meet this challenge, under USAID's APCCA Strategy, the third objective focuses on the prevention and elimination of all forms of violence against children including abuse, exploitation, and trafficking. Likewise, across all USAID-funded contracts (other than those for commercial items), as well as grants and cooperative agreements, USAID requires the establishment of appropriate safeguarding measures to reduce such risks of harm to children.

This guidance is intended to provide steps that implementing partners can take to comply with USAID's child safeguarding requirements and provides information on current best practices. USAID implementing partners should also consult the terms and conditions of their awards.

Table of Contents

1. **Frequently Asked Questions (FAQs) on USAID Child Safeguarding**. *This section gives basic information on the content and application of USAID's mandatory child safeguarding requirements that are included in all grants and contracts (other than those for commercial items) regardless of type of program. Sections include:*
    - **Basic Requirements**
    - **Key Definitions**
    - **Investigation/Response**
    - **Prevention**
    - **Other Questions**
2. **USAID Best Practices for Complying with Child Safeguarding Requirements.** *This section summarizes how other implementing partners prevent and respond to child abuse, exploitation, and neglect.* *
3. **External Resources on Child Safeguarding.** *This section lists a range of web-based resources that may be useful to consult on child safeguarding.*

**USAID does not approve or endorse any specific organization, policy, practice, or process provided as an example or a resource in this guidance for implementing partners. USAID partners remain accountable for compliance with USAID child safeguarding requirements in: ADS 303maa (US NGOs/assistance); ADS 303mab (non-US NGOs/assistance); ADS 303mat (all NGOs/fixed-amount awards) and/or AIDAR 752.7037 (contracts, other than those for commercial items).*

Frequently Asked Questions (FAQs) on USAID Child Safeguarding

Basic Requirements

1. Which child safeguarding requirements apply to USAID partners?

Our partners must prohibit all forms of *child abuse, exploitation, and neglect* in USAID-funded awards. These terms are expressly defined in the Automated Directives System (ADS), and those definitions are listed in question 11.

The USAID ADS mandatory standard provisions and AIDAR clause applicable to implementing partners are:

ADS 303maa M.27 (US NGOs/assistance)

ADS 303mab M.25 (non-US NGOs/assistance)

ADS 303mat M.13 (all NGOs/fixed-amount award)

AIDAR 48 CFR 752.7037 (contracts, other than those for commercial items).

See also:

ADS 200mbt (covering USAID employees): Policy/Guidance on the Implementation of USAID Child Safeguarding Standards.

2. Which USAID partners are covered?

Applicability of the child safeguarding clauses and provisions extends to contracts (other than those for commercial items) in AIDAR 752.7037 and assistance awards under ADS 303maa Standard Provisions for US-Nongovernmental Organizations (M27) and ADS 303mab Standard Provisions for Non-US Nongovernmental Organizations (M25) (contracts, grants, and cooperative agreements).

Public international organizations (PIOs) and government-to-government agreements are not covered by these child safeguarding provisions.

3. For applicable USAID partners, who among their staff is covered?

All partner personnel implementing USAID-funded activities are covered. Others, such as volunteers, board members, visitors, and third-party vendors, who have access or come into contact with children, should be held accountable to the same level of child safeguarding standards and best practices.

4. Are subawards and subcontracts covered?

Yes. A USAID-funded partner must insert the same child safeguarding requirements enumerated in its award document into all its subawards and subcontracts.

5. What programs are covered?

With the exception of commercial item contracts, all types of programs, projects, and activities are covered, regardless of whether child beneficiaries are involved. See FAQ Number 6 for further information.

6. Why are all USAID-funded programs covered?

USAID has applied and incorporated its child safeguarding prohibitions to all USAID-funded awards to ensure consistent protections for children regardless of the type of USAID program involved. Predicting when a specific award might involve children or when partner personnel might come into contact with children is not always easy or clear; therefore, the prohibition covers all awards, even those that do not directly focus on child beneficiaries. Children are frequently present or involved, even if not direct beneficiaries of a specific USAID program. For example, maternal and child health programs, that directly include child beneficiaries who receive specific treatments, are covered. Likewise, agricultural activities related to transportation value chains, even though they do not directly involve children, are covered as well.

7. Who is a "child"?

For purposes of USAID's child safeguarding award requirements, a child or children are defined as persons who have not attained age 18, regardless of the age of majority under local law.

8. What about individuals who are older than 18?

Other USAID award requirements cover people over age 18. For example, all USAID grant and contract agreements, including both for development and humanitarian assistance awards, require that USAID implementing partners maintain codes of conduct for their employees that adhere to the same standards for United Nations employees in Section 3 of the UN Secretary-General's Bulletin - Special measures for protection from sexual exploitation and sexual abuse (**ST/SGB/2003/13**). This requirement provides a safeguarding standard for all ages and includes requirements for consulting with USAID that also apply in child safeguarding situations. See FAQ Number 10 for more information.

9. Which USAID child safeguarding requirements are mandatory?

Partners must abide by the following core principles:

- Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection to children.
- Ensure compliance with U.S. law where applicable.
- Prohibit all child abuse, exploitation, and neglect in their programs. ('Child abuse,' 'exploitation,' and 'neglect' are defined terms in USAID awards, and the definitions are included verbatim in question 11.)
- Consider child safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations.
- Apply measures to reduce the risk of child abuse, exploitation, or neglect.
- Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children.
- Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, and neglect.
- Mandate that personnel and others report allegations of child abuse, exploitation, or neglect.
- Investigate and manage responses to such allegations.
- Take appropriate action in response to allegations of child abuse, exploitation, or neglect, including, but not limited to, dismissal of personnel.

All the child safeguarding principles enumerated above must be incorporated into an organization's code of conduct for all personnel implementing USAID-funded activities.

10. How do the PSEA, C-TIP, and child safeguarding policies and award requirements interact?

Protection from sexual exploitation and abuse (PSEA), child safeguarding, and countering trafficking-in-persons (C-TIP), are all key components of a unified safeguarding regime. Taken together and applied effectively, these distinct yet connected frameworks can help strengthen safeguarding and protections for vulnerable populations across our programs. The principles concerning gender equality, inclusive development, robust feedback, and a culture of accountability are also critical for building a safeguarding regime and operating environment that reduces risks for the most vulnerable. Sexual exploitation and abuse, child abuse, exploitation and neglect, and trafficking in persons are deeply rooted in power imbalances exacerbated in development and humanitarian contexts in which aid workers often control access to valued commodities and services.

Regardless of the type of safeguarding violation, USAID takes, and encourages our partners to take, a survivor-centered approach to allegations, placing the survivor's experiences, considerations, and needs at the center of the process, with appropriate due process and accountability for alleged perpetrators of the abuse. When the survivor is a child, the approach must consider the best interests of the child, incorporate special provisions in how to interview a child, provide required services and engage with the parents, family, or other caregivers as appropriate.

When responding to allegations of safeguarding failures in programming, implementing partners should check their award requirements for specific terms and guidance. In some instances, an incident may relate to two or more policies and/or award requirements, in which case, partners should ensure they are compliant with all relevant requirements. For example, procurement of sex from a beneficiary is both a violation of the C-TIP and PSEA Code of Conduct, and if the survivor is under the age of 18, child safeguarding requirements also apply.

For more information on the specific PSEA award requirements and reporting, please see the **PSEA FAQs**.

For more information on the specific C-TIP award and reporting requirements, please see the **Guidance on Implementation of the C-TIP Code of Conduct**.

Key Definitions

What are the definitions of the following terms?

11. Child abuse, exploitation, and neglect

These terms are defined in many different national and international contexts. For the purposes of USAID, these terms are already specifically defined as follows:

Child abuse, exploitation, or neglect constitutes any form of physical abuse; emotional abuse, or ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: any act or failure to act which results in death, serious physical or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child.

Physical abuse

- **Physical abuse:** Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to a child's health or welfare, or death. Such acts may include, but are not limited to: punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the child.

Sexual abuse

- **Sexual Abuse:** Constitutes fondling a child's genitals, penetration, incest, rape, sodomy, indecent exposure, and exploitation through prostitution or the production of pornographic materials.

Emotional abuse or ill treatment

- **Emotional abuse or ill treatment:** Constitutes injury to the psychological capacity or emotional stability of the child caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: humiliation, control, isolation, withholding of information, or any other deliberate activity that makes the child feel diminished or embarrassed.

Exploitation

- **Exploitation:** Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being.

Neglect

- **Neglect:** Constitutes failure to provide for a child's basic needs within USAID-funded activities that are responsible for the care of a child in the absence of the child's parent or guardian.

12. Within USAID, what is the difference between child protection programming and child safeguarding?

Child protection is broadly defined as the prevention of and response to violence, exploitation, abuse, and neglect of children. Child protection programs focus on child beneficiaries, especially vulnerable children and their households. Child protection programs typically encompass an understanding of host country child welfare laws and policies, and include community and child welfare systems reforms that address risks to children, and may focus on family and caregiver environments, actions, and behaviors that affect individual children. Child safeguarding, as used herein, is one aspect of a sound child protection approach. Other organizations may have their own definitions of child protection depending on the contexts in which they work.

In this guidance, *child safeguarding* is specifically focused on the conduct of USAID implementing partners. Child safeguarding is used to describe the prohibitions and actions necessary to prevent and respond to incidents of child abuse, exploitation, and neglect perpetrated by implementing partners' personnel across all sectors of an intervention or program. It constitutes what is appropriate behavior when working with children. Child safeguarding also includes systems and mechanisms established by organizations to ensure the safety of child participants in the presence of staff or outside parties.

USAID funds diverse types of programming that impact children and their families, but they must all incorporate USAID child safeguarding provisions, so that any children in such programs also have the benefit of the prohibitions and protections required under the USAID child safeguarding terms contained in their awards.

13. What does it mean to "consider child safeguarding in project planning?"

Virtually any type of program has the potential to expose children to the risk of child abuse, exploitation, or neglect. For example, an effort to assist a community in clearing post-conflict rubble from the streets by paying adult workers via a cash-for-work model will likely also encounter children trying to earn money. Partners must comprehensively think through the downstream potential for the use of child labor and child exploitation in their programming, assess the criticality of those risks, and take action to address and mitigate them.

Child safeguarding also includes establishing policies and procedures within projects or organizations that recognize the rights of children to be protected from harm and abuse and ensuring all those engaging with children are aware of, and complying with, those policies. Each project will present its own challenges for ensuring that child safeguarding principles are included in project planning. More information and examples on best practices is included in **USAID Best Practices on Child Safeguarding** .

Investigation/Response

14. To whom must a partner report when allegations of child abuse, exploitation, and neglect are discovered in their USAID-funded programs?

Partners are strongly encouraged to simultaneously report credible allegations of child abuse, exploitation, or neglect to USAID's Office of Inspector General (OIG) and to the cognizant Agreement Officer/Contracting Officer (AO/CO). USAID implementing partners are required to consult with the AO/CO and the relevant USAID Mission Director to address and resolve child sexual abuse and exploitation violations involving their staff. See **ADS 303maa M14** and **ADS 303mab M11** for the assistance provisions for US and non-US NGOs and **AAPD 18-03** for contract requirements.

15. What type of investigation must a partner conduct when alerted to allegations of child abuse, exploitation, and neglect in a USAID-funded program?

The USAID award requirements do not provide specific instructions on how to conduct and manage such allegations but do require a partner to take investigative action on allegations regardless of by whom or how such allegations are presented. As part of this partner toolkit, best practice information from implementing partners on how to initiate and conduct such internal investigations is available in the **USAID Best Practices on Child Safeguarding**.

16. What are some examples of how a partner could use best practices to address child safeguarding allegations?

USAID is developing a set of case study examples of how to respond to allegations of child abuse, exploitation, or neglect; sexual exploitation and abuse; and trafficking in persons, as part of the next phase of the Partner Toolkit.

17. What actions are suggested to protect children when addressing allegations of child abuse, exploitation, or neglect?

As children's complaints are often ignored, the most critical step for a partner to initiate is to listen and immediately meet and respond to the needs of the child or children regardless of whether or not the allegations may be verified. Implementing partners must implement measures to protect children who are talking about such conduct, and determine immediate, appropriate steps to ensure that the risks facing the child/children are addressed or eliminated, regardless of whether the allegations have been substantiated.

Implementing partners should tailor the response to the context and situation. USAID recommends consulting with the relevant AO/CO and the AO/CO's Representative (AOR/COR) to discuss appropriate actions and responses, and to request access to the child-safeguarding expertise of USAID's technical or legal offices. See also the PSEA FAQs for guidance in instances of sexual exploitation and abuse.

18. What is the role of USAID personnel, including the AO/CO and AOR/COR?

USAID has zero tolerance for sexual exploitation and abuse in its programs. Accordingly, USAID staff may follow up on such allegations, as appropriate, and engage with implementing partners to ensure that allegations are appropriately investigated and addressed.

USAID staff are required to report allegations of sexual exploitation or abuse of the beneficiaries of USAID assistance to the Office of Inspector General at +1 (202) 712-1150 or **ig.hotline@usaid.gov**. In addition, USAID staff are strongly encouraged to notify the cognizant AO/CO as soon as they become aware of the allegations.

While partners are not required to provide additional information regarding each individual incident, program teams may consider asking additional follow up questions of the partner in order to make a recommendation to the AO/CO on the appropriate award remedy and consider whether the matter should be referred to M/MPBP/Compliance. Specifically, they may ask implementing partners what they are doing to address the needs of the survivor who directly experienced the sexual exploitation or abuse—including protection from potential retaliation. Program teams may also ask partners what they are doing regarding the alleged perpetrator, including ensuring that any investigations incorporate appropriate principles of due process.

AOs/COs may also take a range of award management actions in accordance with the terms and conditions of the award, including referring perpetrators for potential suspension and debarment (see question below). Effective communication between the AO/CO, AOR/COR, and implementing partner is essential for ensuring an appropriate response to all allegations of serious wrongdoing.

19. What about the responsibility of an implementing partner to initiate and make mandatory reports of child abuse to U.S. Federal or State authorities or to applicable host country authorities overseas?

USAID requirements on child safeguarding do require an implementing partner to "ensure compliance with U.S. law where applicable" and also to "ensure compliance with host country and local child welfare and protection legislation." The full responsibility for determining when, where, how, and to whom to report under such legislation is with the implementing partner.

USAID in these FAQs is not able to provide a comprehensive list of all U.S. Federal and State laws that may be applicable or all host country laws that require mandatory reporting of child abuse, exploitation, or neglect allegations, but some useful publicly available resources include:

- Child Welfare Information Gateway: **Mandatory Reporters of Child Abuse and Neglect**.
- Child Welfare Information Gateway: **Establishment and Maintenance of Central Registries for Child Abuse or Neglect Reports**.
- International Centre for Missing & Exploited Children: **Understanding the Role of Mandatory Reporters**.

Prevention

20. Where can we find best practice examples of how to prevent child abuse, exploitation, or neglect in our programs?

See **USAID Best Practices on Child Safeguarding** for examples of other donor and partner resources to ensure compliance with child safeguarding principles.

21. Are the costs of child safeguarding plans and actions allowable under USAID awards?

While final decisions on cost allowability, allocability and reasonableness will rest with the cognizant AO/CO, USAID recognizes the need to strengthen the aid community's overall capacity for PSEA including individual organizations' varying levels of existing capacity.

22. What does it mean to have child-safe screening procedures for partner personnel?

As a best practice, a USAID implementing partner should conduct background record checks (BRCs) on all staff. To appropriately screen for child safeguarding indicators, BRCs should minimally include comprehensive criminal and sexual offender histories. Any BRC discrepancies should be reviewed and cleared prior to direct contact between the individual and children if the person is hired. For individuals working directly with children:

- Recruitment advertisements (for all staff and consultants) should make reference to the partner's child safeguarding policy and screening process.
- All interviews and reference checks should contain a question specifically relating to child safeguarding issues and the candidate's previous history and suitability of working directly with children.

See **USAID Best Practices on Child Safeguarding** for suggestions for child-safe screening procedures.

Other Questions

23. Must these requirements be written?

Yes. Partners must include within a **code of conduct** for all personnel implementing USAID-funded activities the child safeguarding principles listed in FAQ Number 9.

24. Are these award requirements applicable to USAID humanitarian partners?

Yes. The child safeguarding requirements in the AIDAR and ADS 303 are mandatory for contractors and NGOs. The AIDAR clause and ADS 303 mandatory standard provisions must be included by USAID AOs and COs in all USAID-funded contracts (other than those for commercial items), grants, and cooperative agreements.

USAID grantees and contractors must ensure their employees conduct themselves in a professional manner when carrying out awards, consistent with the standards for United Nations (U.N.) employees in Section 3 of the **U.N. Secretary General's Bulletin - Special Measures for Protection from Sexual Exploitation and Sexual Abuse**. For awards involving International Disaster Assistance (IDA), Transition Initiative (TI), or Food for Peace Title II (Title II) emergency funds—partners, including NGOs, contractors and PIOs must adopt an employee code of conduct that incorporates such standards. Partners who receive IDA and Title II emergency funds from USAID's Bureau for Humanitarian Assistance (BHA) must further provide details on how the code of

conduct will be implemented within a specific field project. For additional information on requirements specific to IDA and Title II emergency funds, please review BHA's **Application Guidelines**.

25. What additional requirements may apply when a U.S. citizen/national child overseas may have been subjected to child abuse, exploitation, or neglect?

In cases in which either the alleged perpetrator or victim is a U.S. citizen/national, the Department of State has detailed, separate guidance in 7 FAM 1720--Child Abuse and Neglect (2018), which must be followed. Under 7 FAM 1721, the Department of State notes that such allegations of child abuse or neglect should be taken seriously. It requires that these cases must be approached urgently but dispassionately, and with deliberation and discretion. The Department of State's Office of American Citizens Services and Crisis Management (CA/OCS/ACS) is the action office for child abuse and neglect issues concerning private U.S. citizens/nationals abroad.

The Department of State 7 FAM 1720 also provides a helpful list of general resources on child abuse, exploitation, and neglect that may be of assistance to implementing partners developing child safeguarding guidance. For example, see **7 FAM 1730** regarding child exploitation and **7 FAM 1932.4** Crime Victim Assistance: Child Abuse and **7 FAM Exhibit 1721** Child Abuse and Neglect Resources, which provides links to various sources of assistance and reference materials. 7 FAM Exhibit 1723 (A through C (2005)) provides lists of possible indicators for child neglect and maltreatment; child physical abuse; and child sex abuse.

26. How do we handle questions and issues raised in our organizations from individuals who may have been victims of child abuse, exploitation, or abuse in prior contexts?

Tragically, given the data on global frequency of child abuse, exploitation, and neglect regardless of country, it is likely that in any audience on this topic there will be survivors of past child abuse. Thus, all materials herein need to be presented and used with sensitivity and understanding that any participants in pre-employment, ongoing training exercises, or other implementing partner events or discussions may include persons who have direct experience with child abuse, exploitation, or neglect. We suggest that implementing partners be prepared with survivor-centered responses as such situations are likely to emerge.

27. May implementing partners print out and/or distribute these USAID materials on child safeguarding?

Yes. We encourage implementing partners to use these materials for training and information distribution. Please maintain the USAID marking and branding.

---

[1] *See:* Advancing Protection and Care for Children in Adversity: A U.S. Government Strategy for International Assistance Available online at **https://www.childreninadversity.gov/strategy**. USAID's APPCA Strategy has three strategic objectives: (1) Build Strong Beginnings; (2) Put Family First; and (3) Protect Children from Violence. APPCA strategy states that "Because of their positive aims and potential for improving children's lives, clear *child safeguarding policies and procedures* for prevention and response, including screening, training, and monitoring personnel, as well as immediate reporting and action response to any violations of law or program policies must also be in place in any activity." APPCA, pg. 27.

[2] *See*: A future for the world's children? A WHO-UNICEF-Lancet Commission. Vol. 395. pages 605-655. February 22, 2020. Available online at **www.lancet.com**.

Last updated: December 01, 2020

SHARE THIS PAGE